Temporary
4141

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of THIRTEEN THOUSAND SEVEN HUNDRED FIFTY ($13,750.00) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of JULIUS (sometimes known as Jules) VON LINDEN, residing in Germany, whom, after investigation, he did determine to be an enemy within the purview of said act as amended, which said real estate is situate in the Twenty-first Ward of the City of New York, State of New York, and bounded and described as follows:

> BEGINNING at a point in the easterly line of a Court or Alley recently laid out by James D. Smith, John E. Wylie and Caleb B. Knovals and known as Sniffen Court, distant fifty-nine (59) feet and three (3) inches southwesterly from the southerly line of Thirty-sixth Street by a line drawn parallel with Third Avenue, and one hundred forty-one (141) feet northwesterly from the westerly line of Third Avenue by a line drawn parallel with Thirty-sixth Street, and running thence southeasterly and parallel with Thirty-sixth Street forty-one (41) feet; thence southwesterly and parallel with Third Avenue nineteen (19) feet and nine (9) inches; thence northwesterly and parallel with Thirty-sixth Street forty-one (41) feet to the easterly line of said Court or Alley; thence along the easterly line of said Court or Alley northeasterly nineteen (19) feet and nine (9) inches to the point or place of beginning. Together with one half of the Court or Alley lying in front of the premises hereby described subject to a perpetual right of way over the same to all and every the owners and occupants of the premises lying adjacent to said Court or Alley on the easterly and westerly sides thereof. Together with a perpetual right of way to and from Thirty-sixth Street through the said Alley or Court to the premises hereby described. And also a perpetual right and privilege to use in common with other occupants of the said Court or Alley the drain or sewer running through the centre of said Court or Alley. Known as No. 8 Sniffen Court.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of the said real estate has been received by the Alien Property Custodian;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided.

CALVIN COOLIDGE

THE WHITE HOUSE,
January 27, 1925.

[No. 4141]

GOVERNMENT PRINTING OFFICE